source of disease, the disease will remain . . . The source is the people, the villagers.'[3]

This disquieting state of affairs prompted a PIL in the Supreme Court in May 2007. The PIL was filed by Nandini Sundar, Ramachandra Guha and E.A.S. Sarma. Sundar was a professor of sociology at the Delhi School of Economics and had undertaken extensive research on Bastar. Guha was a prominent historian and author of several acclaimed books. Sarma was a former civil servant and previously commissioner for tribal welfare in the government of Andhra Pradesh. The PIL relied on four fact-finding reports by civil society organizations on the situation in Chhattisgarh. As members of the Independent Citizens' Initiative, Sundar, Guha and Sarma were part of the fact-finding missions for one of these reports, entitled 'War in the Heart of India'. The report estimated the death toll caused by Salwa Judum to be between 500 and 1,000 people in one year alone.[4]

Sundar, Guha and Sarma claimed that the state of Chhattisgarh had violated the fundamental rights of its citizens in promoting Salwa Judum and recruiting SPOs for counter-insurgency operations. They claimed that the state not only violated the right to life of the citizens who came into contact with Salwa Judum and SPOs, but also the right to life of SPOs themselves, who were untrained and unprepared for counter-insurgency operations. Among the remedies they requested from the court were a direction to the government not to support the activities of Salwa Judum, an independent inquiry into the human rights violations committed by its members, and an order of compensation to the victims of Salwa Judum violence on par with the compensation paid to victims of Naxalite atrocities.[5]

By the time the hearings at the Supreme Court commenced towards the end of 2007, both sides had mobilized substantial legal teams. Senior advocate Ashok Desai and well-known criminal lawyer Nitya Ramakrishnan represented Sundar, Guha and Sarma. The Chhattisgarh government had a legal team that included, at different stages, senior advocates Harish Salve and Mukul Rohatgi. The central government was also represented at the hearings by a battery of prominent senior advocates –